

Ram Autar Singh v. U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 24 August 2018 · WRIT - C No. 28603 of 2018 · **Writ disposed; relegated to Clause 6.5 for bill correction.**

HEADNOTE

A writ seeking correction of an electricity bill is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may approach the appropriate authority, which is to consider and decide the application expeditiously in accordance with law.

FACTUAL SUMMARY

Ram Autar Singh filed a writ petition in the Allahabad High Court against U.P. Power Corporation seeking a mandamus to correct his electricity bill, furnish a corrected copy so that he could deposit it, and decide his application dated 29 May 2018 pending before the second respondent. Counsel for the petitioner and the Electricity Department were heard. The controversy was confined to the correctness of the bill raised against him.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

A writ petition raising a dispute as to the correctness of an electricity bill is not to be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides a statutory remedy. The consumer may approach the appropriate authority, whose application is to be considered and decided expeditiously in accordance with law. ¶ 1

PRINCIPLE TAGS

bill-correctness-under-clause-6.5-not-cgrf-or-ombudsman Bill-correctness dispute relegated to Clause 6.5; writ not entertained because that statutory remedy was available. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE PENDING APPLICATION DATED 29.05.2018

Merits not examined; petitioner relegated to Clause 6.5. ¶ 1